

25STCV19527 25STCV19527

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-27

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Case Number: 25STCV19527 Hearing Date: July 27, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 27, 2026 TRIAL DATE:

Not Set

CASE: Masood A. Khan v. Hyundai Motor America

CASE NO.: 25STCV19527

MOTION

TO COMPEL ARBITRATION

MOVING PARTY: Defendant Hyundai Motor America

RESPONDING PARTY: Plaintiff Masood A. Khan

CASE

HISTORY:

6/30/2025:

Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a lemon law action.

Defendant Hyundai Motor America
(Defendant) moves to compel arbitration.

TENTATIVE RULING:

Defendant's motion to compel
arbitration is DENIED.

Defendant
to give notice, unless waived.

DISCUSSION:

Evidentiary Objections

Plaintiff's objection is OVERRULED.

Request for Judicial Notice

Defendant
seeks judicial notice of the Complaint.

The
request is granted.

Legal Standard

Parties may be compelled to arbitrate a
dispute upon a finding that: (1) there was a valid agreement to
arbitrate between the parties; and (2) the agreement covers the
controversy or controversies in the parties' dispute. (Code Civ. Proc., §
1281.2; Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955,
961.)

Motion
to Compel Arbitration

Defendant moves to compel arbitration on grounds that

there exists an agreement to arbitrate in the Owner's Handbook & Warranty Information booklet that accompanied Plaintiff's vehicle (the "Warranty Booklet").

Defendant argues Plaintiff is bound to arbitrate her dispute with Defendant because the Warranty Booklet states that the vehicle's warranty is subject to the terms of a binding arbitration provision:

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law.

(Ameripour Decl., Exh. 2, p. 12.)²

In opposition, Plaintiff contends that Defendant has not established, and has presented no evidence, that the warranty Booklet was ever presented to Plaintiff prior to or at the time of purchase. Plaintiff argues the warranty booklet is not a contract.

Defendant fails to show that the arbitration provision contained in the Warranty Booklet constituted an offer to which Plaintiff assented, thus the statements included in the Warranty Booklet do not amount to an enforceable contract.³

(See *Leslie v. Brown Bros. Inc.* (1929) 208 Cal. 606, 621

(offer cannot be turned into agreement merely because the person to whom it is made makes no reply, even where offer states that silence will be taken as consent); see also *Norcia v. Samsung Telecommunications America, LLC* (9th

Cir. 2017) 845 F.3d 1279, 1291 (offeree, regardless of apparent manifestation of her consent, is not bound by inconspicuous contractual provisions of which she was unaware, contained in a document whose contractual nature is not obvious); see *Golden Eagle Ins. Co. v. Foremost Ins. Co.* (1993) 20 Cal.App.4th 1372, 1385 (silence or inaction do not constitute acceptance).)

Because Defendant is without evidence that the statements regarding arbitration in the Warranty Booklet amount to a contract, those statements are not grounds on which the Court will order Plaintiff to arbitrate her dispute with Defendant.¿ (See *Omar*, supra, Cal.App.4th at p. 961.)

Defendant also argues Plaintiff should be estopped from asserting that the absence of her signature on a written contract precludes the enforcement of a contract's arbitration clause, citing *Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 269.¿ However, this principle only applies where there is an enforceable contract that is defective because one of the parties failed to sign.¿ Here, Defendant presents insufficient evidence that the Subject Vehicle's warranty constitutes an enforceable contract under basic principles of contract formation.¿

The warranty agreement included in the Warranty Booklet does not constitute an enforceable contract under principles of estoppel or foundational theories of contract formation.¿

Defendant presents no alternative theory for compelling arbitration.

CONCLUSION:

Accordingly,
Defendant's motion to compel arbitration is DENIED.

IT IS SO ORDERED.

Dated: July 27, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.